STANDARD FORM OF AGREEMENT BETWEEN OWNER AND CONTRACTOR
(Stipulated Sum)

This Agreement is entered into as of March 15, 2024, by and between TALLIS DEVELOPMENT GROUP, LLC, a Tennessee limited liability company ("Owner"), and BRIGHTWATER BUILDERS, INC., a Tennessee corporation ("Contractor"), for the following Project:

Harpeth Ridge Medical Office Building, 1200 Harpeth Ridge Parkway, Franklin, Tennessee. Four-story medical office building of approximately 62,000 gross square feet, including an imaging suite on Level 1.

The Architect is Lindqvist Rowe Architects, PLLC, Nashville, Tennessee.

ARTICLE 1 THE CONTRACT DOCUMENTS

1.1 The Contract Documents consist of this Agreement, the General Conditions (AIA A201-2017 as modified), the Drawings and Specifications listed in Exhibit A, Addenda 1 through 3, and Modifications issued after execution of this Agreement.

ARTICLE 2 THE WORK

2.1 The Contractor shall fully execute the Work described in the Contract Documents, except as specifically indicated in the Contract Documents to be the responsibility of others.

ARTICLE 3 DATE OF COMMENCEMENT AND SUBSTANTIAL COMPLETION

3.1 The date of commencement of the Work shall be the date stated in a notice to proceed issued by the Owner.

3.2 The Contract Time shall be measured from the date of commencement.

3.3 The Contractor shall achieve Substantial Completion of the entire Work not later than June 30, 2025, subject to adjustments of the Contract Time as provided in the Contract Documents.

3.4 Liquidated Damages. The Owner and Contractor agree that the Owner will suffer damages if Substantial Completion is not achieved by the date in Section 3.3. The Contractor shall pay the Owner, as liquidated damages and not as a penalty, Two Thousand Five Hundred Dollars ($2,500.00) for each calendar day after that date until Substantial Completion is achieved. The Owner may deduct liquidated damages from any sums otherwise due the Contractor, including retainage.

ARTICLE 4 CONTRACT SUM

4.1 The Owner shall pay the Contractor the Contract Sum of Fourteen Million Eight Hundred Fifty Thousand Dollars ($14,850,000.00), subject to additions and deductions as provided in the Contract Documents.

ARTICLE 5 PAYMENTS

5.1 Progress payments shall be made monthly on the Contractor's Application for Payment, certified by the Architect.

5.2 Retainage. The Owner shall withhold retainage of five percent (5%) of each progress payment. Retainage shall be released upon Substantial Completion, less any amount the Owner is entitled to withhold under the Contract Documents, including liquidated damages.

ARTICLE 15 CLAIMS AND DISPUTES (modifying A201-2017 Article 15)

15.1.2 Time Limits on Claims. Claims by the Contractor for an increase in the Contract Time must be initiated by written notice to the Owner and the Architect within twenty-one (21) days after the occurrence of the event giving rise to the Claim. Claims not initiated within that period are waived.

15.1.6 Claims for Additional Time. The Contractor shall support any Claim for additional time with a time impact analysis showing the effect of the event on the critical path.

15.4 Disputes not resolved by mediation shall be decided by litigation in the Circuit Court for Williamson County, Tennessee.

ARTICLE 16 MISCELLANEOUS

16.1 This Agreement is governed by the law of the State of Tennessee.

EXECUTED as of the date first written above.

OWNER: TALLIS DEVELOPMENT GROUP, LLC
By: Dana Whitcomb, Vice President, Development

CONTRACTOR: BRIGHTWATER BUILDERS, INC.
By: Gregory Tate, President